

1 in your experience, Officer, a person traveling on a
2 scooter should be traveling with the flow of traffic,
3 correct?

4 A. Correct.

5 Q. You did not cite Mr. Rosario for traveling
6 against the flow of traffic, correct?

7 A. Correct.

8 Q. That was your conclusion, that Mr. Rosario
9 caused the collision in violation of California
10 Vehicle Code --

11 MR. ROSARIO: Objection. Speculation.

12 THE COURT: Response?

13 MS. NAVARATNASINGHAM: Your Honor,
14 Mr. Rosario opened the door to the causation as to
15 Mr. Fernandez's conclusion based upon his
16 investigation we just walked through.

17 THE COURT: It is a lay opinion. Very well.

18 MS. NAVARATNASINGHAM: Q. Mr. Fernandez,
19 based upon your investigation, you determined that
20 Mr. Rosario caused the collision by driving on the
21 opposite side of the road against the normal flow of
22 traffic in violation of California Vehicle Code
23 21651B, correct?

24 A. Correct.

25 Q. I just asked this: You did not cite
26 Mr. Rosario for traveling against the flow of traffic,
27 correct?

28 A. Correct.